

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Housing (Scotland) Act, 1925	15 & 16 Geo. 5. c. 15.
Housing (Temporary Accommodation) Act, 1944	7 & 8 Geo. 6. c. 36.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
Local Government (Scotland) Act, 1947... ..	10 & 11 Geo. 6. c. 43.
Crown Proceedings Act, 1947	10 & 11 Geo. 6. c. 44.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Housing (Scotland) Act, 1950	14 Geo. 6. c. 34.
Rivers (Prevention of Pollution) (Scotland) Act, 1951	14 & 15 Geo. 6. c. 66.
Visiting Forces Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 67.

CHAPTER 14

National Museum of Antiquities of Scotland Act, 1954

ARRANGEMENT OF SECTIONS

Section

1. Scottish National Museum of Antiquities Board.
2. Powers and duties of the Board.
3. Property vested in the Board.
4. Officers and servants of the Board.
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6. Amendment of National Galleries of Scotland Act, 1906, s. 4.
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SCHEDULE.

An Act to provide for the establishment of a Board to manage the National Museum of Antiquities of Scotland and to amend the provisions of the National Galleries of Scotland Act, 1906, relating to the constitution of the Board constituted thereunder.
[10th February, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the purpose of managing the National Museum of Antiquities of Scotland (hereafter in this Act referred to as “the Museum”) there shall be constituted in accordance with the Schedule to this Act a Board of Trustees to be called the Board of Trustees for the National Museum of Antiquities of Scotland and hereafter in this Act referred to as “the Board”.

(2) The supplementary provisions contained in the Schedule to this Act shall have effect with regard to the Board.

Powers and
duties of the
Board.

2.—(1) The Board shall have the general management and control of the Museum and for that purpose may—

- (a) accept gifts or bequests of money or objects or other property;
- (b) with the consent of the Secretary of State, exchange, sell or otherwise dispose of any object belonging to the Museum which in the opinion of the Board is not required for the purposes of the Museum;
- (c) with the consent of the Secretary of State, apply any money received by the Board for any object disposed of by them or from any other source, and not subject to any specific condition or direction, in the purchase of any object which in the opinion of the Board it is desirable to acquire for the Museum or otherwise in defraying any expenses incurred by the Board;
- (d) lend to any gallery or museum or exhibition under the control of a public authority or university in Great Britain or to any gallery or museum or exhibition approved for the purposes of this provision by the Secretary of State any object which can in the opinion of the Board be temporarily removed from the Museum without injury to the interests of persons using the Museum:

Provided that before making any such loan the Board shall satisfy themselves that due provision is made for the safety and insurance of the object and for payment by the borrower of all expenses in connection with its removal and return;

- (e) make such rules as they think necessary for the purposes of the management and control of the Museum, including the governing of the admission of persons to the Museum Library and the extent of the borrowing privileges to be accorded to Fellows of the Society of Antiquaries of Scotland;
- (f) with the consent of the Secretary of State, destroy any object vested in them which appears to them to be infested by destructive organisms or, by reason of physical deterioration, to have become useless for the purposes of the Museum;
- (g) subject to the provisions of this Act do such other things as appear to the Board to be necessary or expedient for furthering the interests and increasing the utility of the Museum:

Provided that the powers conferred by this section of exchanging, selling or otherwise disposing of or lending any object shall not be exercised in any manner inconsistent with any condition known to have been attached to any gift or bequest

by virtue or in consequence of which that object was vested in the Board for the purposes of the Museum.

(2) There shall be transferred to the Board the whole powers, rights, duties and liabilities, so far as relating to the Museum, of—

(a) the Board of Trustees for the National Galleries of Scotland, and

(b) the Society of Antiquaries of Scotland.

(3) The Board shall make an annual report of their proceedings to the Secretary of State, and the Secretary of State shall lay any such report before each House of Parliament.

3.—(1) There shall be vested in the Board and be held by the Board for the purposes of the Museum all objects which— Property
vested in the
Board.

(a) at the time of the constitution of the Board were vested in the Board of Trustees for the National Galleries of Scotland for the purposes of the Museum;

(b) are expressly given or bequeathed to the public or to the nation or to the Board for the purposes of the Museum;

(c) are given or bequeathed by words showing an intention that the gifts should enure to or for the benefit of the Museum;

(d) are acquired by purchase or otherwise for the purposes of the Museum.

(2) All additions to the Library of the Museum which are made to it through the Society of Antiquaries of Scotland shall be vested in the Board.

4.—(1) The Secretary of State may, to such number as the Treasury may sanction, appoint such officers and servants as he may deem necessary to enable the Board to exercise and perform their powers and duties, and the persons employed in the Museum at the commencement of this Act shall, subject to any direction of the Secretary of State, be transferred and attached to, and become officers and servants of, the Board. Officers and
servants of
the Board.

(2) The officers and servants of the Board shall receive such remuneration as the Treasury may, on the application of the Secretary of State, determine.

5. Any expenses incurred by the Board in the exercise and discharge of their powers and duties under this Act, and any sums required for the remuneration of the officers and servants of the Board, shall, except in so far as they are defrayed in accordance with the provisions of paragraph (c) of subsection (1) of section two of this Act, be defrayed out of moneys provided by Parliament. Any moneys received by the Board and not Provision for
expenses.

used in accordance with the provisions of the said paragraph (c) or subject to any specific direction or condition shall be paid into the Exchequer.

Amendment
of National
Galleries of
Scotland Act,
1906, s. 4.

6 Edw. 7. c. 50.

6.—(1) Subsections (1) and (3) of section four of the National Galleries of Scotland Act, 1906, in so far as they relate to the period of office of the members of the Board thereby constituted, and to the periodic reconstitution of that Board, shall cease to have effect and each member shall hold office for five years from the date of his appointment, and shall be eligible for reappointment on the expiry of that period.

(2) Subsection (4) of the said section four, in so far as it requires the appointment of the Chairman of the said Board to be for a period of not less than a year, shall cease to have effect and accordingly the words in the said subsection “not being less than a year” are hereby repealed.

Citation and
commence-
ment.

7.—(1) This Act may be cited as the National Museum of Antiquities of Scotland Act, 1954.

(2) This Act shall come into operation on such date as the Secretary of State may by statutory instrument appoint.

Section 1.

SCHEDULE

Constitution and Proceedings of Board

1. The Board shall consist of the following persons:—

- (a) four Fellows of the Society of Antiquaries of Scotland appointed by the Society;
- (b) four persons to be appointed, one by the Senatus Academicus of each of the Universities of St. Andrews, Glasgow, Aberdeen and Edinburgh;
- (c) the President of the Society of Antiquaries of Scotland for the time being *ex officio*;
- (d) the Abercromby Professor of Prehistoric Archaeology in the University of Edinburgh for the time being *ex officio*;
- (e) eleven persons appointed by the Secretary of State as follows—
 - (i) one representing archaeological interests in the West of Scotland;
 - (ii) one representing the Scottish Regional Group of the Council for British Archaeology;
 - (iii) one representing schools; and
 - (iv) eight representing such public interests other than archaeological, as the Secretary of State may think fit.

2. In the event of the establishment of a Chair of Archaeology or closely related subject in any of the Universities of St. Andrews, Glasgow or Aberdeen, the Secretary of State may direct that the holder of that Chair for the time being shall be a member of the Board *ex officio*.

Supplementary Provisions

3. Each appointed member of the Board shall hold office for four years from the date of his appointment, and shall be eligible for reappointment on the expiry of that period.

4. If the place of an appointed member of the Board becomes vacant before the expiration of his term of office, whether by death, resignation or otherwise, the vacancy shall be filled by appointment, by the body or person who appointed the member whose place so became vacant, of a person possessing the like qualification as that member.

5. The Secretary of State shall appoint, either from among the members or otherwise, a person to be chairman of the Board, and the Board shall appoint one of their members to be vice-chairman.

6. The Board shall have power to appoint committees consisting of members of the Board.

7. The Board shall have power to make rules regulating their procedure including the quorum of the Board and of any committee appointed by them.

8. The proceedings of the Board shall not be invalidated by any vacancy in the membership thereof or by any defect in the appointment of a member.

9. The Board shall be a body corporate with a common seal.

CHAPTER 15

An Act to extend the period during which loans and advances may be made under the Cinematograph Film Production (Special Loans) Acts, 1949 to 1952; to authorise the National Film Finance Corporation to enter into special arrangements with respect to certain loans; and for purposes connected therewith.
[9th March, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In the following provisions of the Cinematograph Film Production (Special Loans) Act, 1949 (in this Act referred to as "the principal Act"), as amended by the Cinematograph Film Production (Special Loans) Act, 1950, that is to say—

(a) paragraph (b) of subsection (1) of section one (which authorises the making of loans by the National Film Finance Corporation during the five years beginning with the passing of the principal Act);

Extension of period for making loans.
12, 13 & 14
Geo. 6. c. 20.
14 Geo. 6. c. 18.